



Agriculture (Miscellaneous Provisions) Act 1972

1972 CHAPTER 62

An Act to make new provision for the prevention of diseases suffered or disseminated by animals and to amend the Diseases of Animals Act 1950; to amend the law relating to slaughterhouses, to the slaughter of animals in Scotland and to the improvement of live stock; to amend Part II of the Agriculture Act 1967; to make new provision in relation to the Agricultural Marketing Fund and the Agricultural Marketing (Scotland) Fund; to increase the amount which may be advanced under section 2 of the Agriculture Mortgage Corporation Act 1956; to increase the penalties under the Agriculture (Poisonous Substances) Act 1952 and the Agriculture (Safety, Health and Welfare Provisions) Act 1956; to make new provision with respect to arbitrations under the Agricultural Holdings Act 1948; to amend the Cereals Marketing Act 1965; to amend the Corn Returns Act 1882 and the Corn Sales Act 1921; to make new provision for obtaining agricultural statistics; to make further provision as to the use of poison against grey squirrels or coypus; to clarify the Plant Health Act 1967 as respects the recovery of expenses incurred by an authority exercising default powers under orders made by virtue of that Act; to abolish agricultural executive committees and certain other committees having functions in relation to agriculture or apiculture; to confer powers on the Secretary of State in relation to certain parks and other land in Scotland; to repeal paragraph (f) of

Case 14 in Schedule 3 to the Rent Act 1968 and paragraph (f) of Case 15 in Schedule 3 to the Rent (Scotland) Act 1971; and for purposes connected with those matters. [9th August 1972]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Control of
zoonoses.

1.—(1) This section shall have effect with a view to reducing the risk to human health from any disease of, or organism carried in, animals; and the Ministers may by order designate any such disease or organism which in their opinion constitutes such a risk as aforesaid.

(2) Where any disease or organism is for the time being designated under this section, the Ministers may by order—

1950 c. 36.

(a) provide for any provision of the Diseases of Animals Act 1950 which has effect in relation to the disease to have effect in relation thereto subject to such modifications as may be specified in the order;

(b) apply any provision of that Act, subject to any modifications so specified, in relation to the presence of the organism in an animal as if the presence of the organism were a disease to which that Act applied.

(3) The Ministers may by order make provision for requiring a person who, in such circumstances as are specified by the order, knows or has reason to suspect that an animal of such description as is specified in the order is or was—

(a) affected with a disease designated under this section;

or

(b) a carrier of an organism so designated,

to furnish to such person and in such form and within such period as are specified in the order such information relating to the animal as is so specified.

(4) If it appears to the Minister that a person may have information relating to an animal affected with a disease designated under this section or an animal which is a carrier of an organism so designated, the Minister may by notice in writing require him to furnish to such person and in such form and within such period as are specified in the notice such information relating to the animal as he possesses and is so specified.

(5) Where a veterinary inspector has reason to believe that an animal such as is mentioned in subsection (4) of this section

is or has been on any land he may, on producing if so required evidence of his authority—

- (a) enter the land and make such tests and take such samples of any animal, feeding stuff, litter, dung, vessel, pen, vehicle or other thing whatsoever which is on or forms part of the land as he thinks appropriate for the purpose of ascertaining whether such an animal is or has been on the land ; and
- (b) require the owner or person having charge of any animals on the land to take such reasonable steps as the inspector may specify for the purpose of collecting or restraining them so as to facilitate the exercise in relation to them of the powers conferred on the inspector by the preceding paragraph.

(6) Any person who—

- (a) fails to comply with a requirement imposed on him by virtue of this section ; or
- (b) in purported compliance with a requirement to furnish information which is imposed on him by virtue of this section, knowingly or recklessly furnishes information which is false in a material particular,

shall be guilty of an offence.

(7) This section shall have effect in relation to poultry as it has effect in relation to animals.

(8) In this section “the Ministers” means the Minister and the Secretary of State acting jointly ; and in the application of subsection (4) of this section to Scotland for any reference to the Minister there shall be substituted a reference to the Secretary of State.

(9) This section and the Diseases of Animals Act 1950 shall have effect as if this section were contained in that Act, except that in this section the expression “disease” is not restricted by its definition in that Act.

2.—(1) In paragraph (a) of the proviso to section 84(1) of the Diseases of Animals Act 1950 (which enables the Minister and the Secretary of State acting jointly by order to extend the definition of animals in that Act so as to include any four-footed beasts not already mentioned in the definition), for the words “any other kind of four-footed beasts” there shall be substituted the words “any kind of mammal, except man, and any kind of four-footed beast which is not a mammal”, and after that paragraph there shall be inserted the following paragraph—

“(aa) the Minister and the Secretary of State acting jointly may, for all or any of the purposes of this Act (except

so far as it relates to disease), by order extend this definition so that it shall, for those purposes or any of them, comprise fish, reptiles, crustaceans or other cold-blooded creatures of any species, not being creatures in respect of which an order can be made under the preceding paragraph”.

- 1968 c. 59. (2) The enactments and instruments with respect to which provision may be made by Order in Council by virtue of section 1(1)(h) of the Hovercraft Act 1968 shall include the said Act of 1950 as amended by the preceding subsection and any instrument made under that Act as so amended.

Seizure of milk etc. liable to spread disease.

1963 c. 11.

3. In section 13 of the Agriculture (Miscellaneous Provisions) Act 1963 (which among other things provides for the seizure and disposal of carcasses and other things including eggs with a view to preventing the spread of certain diseases and for the payment in certain cases of compensation for things seized) after the word “eggs” in subsection (1) there shall be inserted the words “milk, skim milk, whey, buttermilk, cream”.

Furnishing by milk marketing boards of information derived from tests of milk.

1958 c. 47.

1956 c. 30.

4.—(1) The relevant Minister may, by a direction in writing given to the board administering a scheme under the Agricultural Marketing Act 1958 for regulating the marketing of cows’ milk, require the board to furnish in writing to any appropriate authority specified in the direction information of a description so specified, being information which is derived from tests of cows’ milk carried out (whether before or after the giving of the direction) by or by agreement with the board and is of a kind appearing to the relevant Minister to be required by the appropriate authority for the purposes of any Milk and Dairies Regulations or for the purposes of any regulation, order or byelaw in force by virtue of the Milk and Dairies (Scotland) Acts 1914 to 1949 or the Food and Drugs (Scotland) Act 1956; and notwithstanding anything in section 47 of the said Act of 1958 (which restricts disclosure of information) it shall be the duty of the board to comply with the direction.

(2) In the preceding subsection—

1947 c. 43.

“appropriate authority” means any of the following authorities, that is to say, the Minister, the Secretary of State, any county council in Scotland and any council of a large burgh in Scotland within the meaning of the Local Government (Scotland) Act 1947, and any small burgh within the meaning of that Act shall, for the purposes of this section, be included in the county in which it is situated; and

“the relevant Minister” means the Secretary of State in relation to the board administering such a scheme as

aforesaid for any area in Scotland and the Minister in relation to the board administering such a scheme for any other area ;

and a direction under the preceding subsection may require different information to be furnished to different authorities and may be varied or revoked by a subsequent direction under that subsection.

(3) Information furnished under this section shall not be used as evidence in proceedings for an offence under any such regulation, order or byelaw as is mentioned in subsection (1) of this section.

5.—(1) The following enactments shall cease to have effect, that is to say—

- (a) section 70(1) of the Food and Drugs Act 1955 (duty of local authorities as to provision of additional slaughterhouse facilities) ;
- (b) section 73(3) of that Act (power of Minister to require alterations in scales of charges for use of public slaughterhouses) ;
- (c) sections 75 to 78 of that Act (restriction of private slaughterhouses) ;
- (d) section 2 of the Slaughterhouses Act 1958 (licensing of slaughterhouses where local restrictions are in force) ; and
- (e) sections 3 and 4 of that Act (reports by local authorities on slaughterhouse facilities, and grants of new licences after submission of reports).

Repeal and amendment of certain enactments relating to slaughterhouses in England and Wales.
1955 c. 16
(4 Eliz. 2).

1958 c. 70.

(2) For subsection (2) of section 1 of the Slaughterhouses Act 1958 there shall be substituted the following subsections—

“(2) Where an application for the grant or renewal of a slaughterhouse licence is made to a local authority in respect of any premises, then, subject to subsections (3) and (4) of section sixty-six of the principal Act (which relate to appeals) and to section five of this Act, the authority—

- (a) shall grant or, as the case may be, renew the licence in accordance with the application if they are satisfied that the requirements relating to slaughterhouses of regulations under section thirteen of the principal Act, of construction regulations under section four of the Slaughter of Animals Act 1958 and of byelaws, if any, made by the authority under section sixty-eight of the principal Act are, or within a reasonable time will be, complied with in respect of the premises ; and
- (b) shall refuse to grant, or, as the case may be, renew the licence if they are not so satisfied.

1958 c. 8
(7 & 8 Eliz. 2).

(2A) The reference in paragraph (a) of the preceding subsection to the requirements of construction regulations under the said section four shall, in relation to an application which does not state expressly that it is for a slaughterhouse licence containing an authorisation in respect of horses under subsection (3) of section sixty-two of the principal Act, be construed as excluding such of those requirements as relate only to horses within the meaning of the said subsection (3); but any licence granted or renewed in pursuance of such an application shall not contain such an authorisation."

1955 c. 16.
(4 & 5 Eliz. 2.)

(3) Nothing in, or in any instrument made under, any local Act shall make unlawful, or subject any person to any penalty by reason of, the use of any premises as a slaughterhouse or the slaughter of animals on any premises at a time when a slaughterhouse licence under the Food and Drugs Act 1955 is in force in respect of the premises.

1971 c. lxxvii.

(4) Nothing in paragraph (b) of subsection (1) of this section or in Schedule 6 to this Act affects any provision of section 73 of the Food and Drugs Act 1955 as applied by section 65 of the Manchester Corporation (General Powers) Act 1971; but in the said section 65—

(a) in subsection (3) the words "public abattoir" and in subsection (4) the words "the abattoir or of" shall be omitted;

(b) for the word "Ministers" in those subsections there shall be substituted the words "Secretary of State"; and

(c) subsection (6) shall be omitted.

Repeal and
amendment of
enactments
relating to
slaughter-
houses in
Scotland.

1954 c. 42.

6.—(1) For section 7 of the Slaughterhouses Act 1954 (duty of local authorities in Scotland in regard to slaughtering facilities) there shall be substituted the following section:—

"Power
of local
authorities
to provide
slaughter-
houses.

7. Subject to the following provisions of this Part of this Act, a local authority may provide and, if they think fit, operate a slaughterhouse, and may dispose of any slaughterhouse belonging to them by feu, sale, lease or excambion; and any slaughterhouse so disposed of shall be deemed to be disposed of under Part VIII of the Local Government (Scotland) Act 1947."

1947 c. 43.

(2) In section 9 of the said Act of 1954 (registration in respect of private slaughterhouses in Scotland), in subsection (3) for the word "may" there shall be substituted the word "shall".

(3) Part II of the said Act of 1954 (provisions relating to Scotland) shall have effect subject to the amendments specified

in Schedule 1 to this Act (being amendments consequential on the foregoing provisions of this section, or of a minor nature).

7.—(1) For section 1 of the Slaughter of Animals (Scotland) Act 1928 there shall be substituted the following section—

“Provisions as to slaughter of animals in slaughter-houses and knackers’ yards.

Amendment of Slaughter of Animals (Scotland) Acts etc. 1928 c. 29.

1.—(1) Subject to the provisions of this Act, no animal shall, in a slaughterhouse or knacker’s yard, be slaughtered otherwise than instantaneously by means of a mechanically-operated instrument in proper repair unless—

- (a) by stunning, effected by means of a mechanically-operated instrument or an instrument for stunning by means of electricity, being in either case an instrument in proper repair, it is instantaneously rendered insensible to pain until death supervenes ; or
- (b) by such other means as may be prescribed, it is rendered insensible to pain until death supervenes, and there are complied with such conditions (if any) as respects the use of those means as may be prescribed.

In this subsection “prescribed” means prescribed by regulations made by the Secretary of State after consultation with such organisations as appear to him to represent the interests concerned.

(2) Regulations under this section may make—

- (a) provision as respects all animals or any class of animals ;
- (b) different provision as respects different classes of animals and as respects different classes of slaughterhouses or knackers’ yards ; and
- (c) such incidental or consequential provision as may appear to the Secretary of State to be necessary or expedient for the purposes of the regulations, including, in particular, in a case where a condition as respects the use of any means of rendering an animal insensible to pain consists in the giving of approval to any matter by a local authority, provision for securing a right of appeal to the sheriff against a withholding or withdrawal of approval.

(3) The power to make regulations under this section shall be exercisable by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.”

(2) The Slaughter of Animals (Scotland) Acts 1928 to 1954 shall have effect subject to the amendments specified in Schedule 2 to this Act (being amendments consequential on the provisions of subsection (1) of this section, or of a minor nature).

(3) It shall be the duty of every local authority to execute and enforce within their district the provisions of the Slaughter of Animals (Scotland) Acts 1928 to 1954 and of any regulations made thereunder; but this subsection shall not be construed as authorising a local authority to institute proceedings for any offence.

1956 c. 30. (4) For the purposes of any regulations made under section 13 of the Food and Drugs (Scotland) Act 1956 (regulations as to food hygiene) in respect of any premises to which the Slaughter of Animals (Scotland) Acts 1928 to 1954 apply, the provisions of section 36 of the said Act of 1956 (power to enter premises) shall apply in relation to an authorised officer of the Secretary of State as they apply in relation to an authorised officer of the local authority who are empowered to enforce those regulations so far as they apply to such premises.

Amendment
of law relating
to improve-
ment of live
stock.

1944 c. 28.

1931 c. 43.

1963 c. 11.

8.—(1) Section 6(1) of the Agriculture (Miscellaneous Provisions) Act 1944 (which applies the Improvement of Live Stock (Licensing of Bulls) Act 1931 to pigs) shall cease to have effect.

(2) The grounds on which a licence to keep a bull for breeding purposes may be refused under section 2(2) of the said Act of 1931 shall cease to include those mentioned in—

(a) section 6(3) of the said Act of 1944 (pedigree standards);

(b) section 17 of the Agriculture (Miscellaneous Provisions) Act 1963 (prescribed standards of suitability);

and accordingly the said sections 6(3) and 17 shall cease to have effect and, in section 6(4) of the said Act of 1944, for the words “the said section two” there shall be substituted the words “section two of the Improvement of Live Stock (Licensing of Bulls) Act 1931”.

1946 c. 26.

(3) The amendments of the said Act of 1931 contained in Schedule 2 to the Emergency Laws (Transitional Provisions) Act 1946 shall apply to Scotland.

(4) The said Act of 1931 shall have effect subject to the provisions of Schedule 3 to this Act, being provisions amending and modifying that Act in various respects and enabling its operation to be suspended by order.

1943 c. 16.

(5) Section 17(4) of the Agriculture (Miscellaneous Provisions) Act 1943 (which prohibits the export of animal semen except under licence) shall cease to have effect.

1950 c. 36.

(6) In section 27 of the Diseases of Animals Act 1950 (which enables the Minister and the Secretary of State acting jointly to allow animals imported into Great Britain to be landed without

being slaughtered if they are intended for exhibition or for other exceptional purposes) after the words "exceptional purposes" there shall be inserted the words "or, in the case of cattle, sheep or swine, intended for use in breeding".

9.—(1) Part II of the Agriculture Act 1967 (grants and loans in connection with alterations in farm structure) shall have effect with the amendments specified in subsections (2) to (6) of this section. Amendments as to grants and loans in connection with alterations of farm structure. 1967 c. 22.

(2) In section 26—

(a) in subsection (1)—

(i) for the words preceding paragraph (a) there shall be substituted the words "The appropriate Minister may in accordance with a scheme and subject to section 50 of the Agriculture Act 1970 make, out of money provided by Parliament, grants of amounts determined in such manner as may be provided by or under the scheme in connection with the carrying out of any of the following transactions approved by him in pursuance of the scheme, that is to say—"; 1970 c. 40.

(ii) after paragraph (b) there shall be inserted—

"(bb) transactions for securing that, where the person occupying an intermediate unit or a commercial unit occupies any part or parts of it otherwise than as owner or as a tenant as defined in the Agricultural Holdings Act 1948 (or, in Scotland, the Agricultural Holdings (Scotland) Act 1949), he comes to occupy that part or all those parts as owner or as such a tenant, and"; 1948 c. 63.
1949 c. 75.

(iii) in the final paragraph for the words "Transactions within paragraphs (a) and (b) above" there shall be substituted the words "Transactions within paragraphs (a), (b) and (bb) above";

(b) at the end of subsection (2) there shall be inserted the words "or, as respects transactions within subsection (1)(bb) of this section, cases where after the transaction has been effected the unit is not in single ownership";

(c) subsections (3) and (5) shall be omitted;

(d) in subsection (6)—

(i) for the words preceding paragraph (a) there shall be substituted the words "Any approval in

pursuance of a scheme under this section of an amalgamation or boundary adjustment—”;

(ii) in paragraph (a) the words “the expenditure has been incurred or” shall be omitted.

(3) In section 27—

(a) in subsection (1) in the words preceding paragraph (a) for the words “relinquishes his occupation of an uncommercial unit” there shall be substituted the words “relinquishes his occupation of, or of a part of, an uncommercial unit”;

(b) after subsection (5A) there shall be inserted—

“(5B) A scheme made by virtue of subsection (1)(a) or (b) of this section may make provision whereby a person is treated for the purposes of the scheme, to such extent and in such cases as may be prescribed—

(a) as the occupier of any land in respect of which he has granted, or agreed to grant, to another person a licence or tenancy of a kind not making that other person a tenant as defined in the Agricultural Holdings Act 1948 (or, in Scotland, the Agricultural Holdings (Scotland) Act 1949);

(b) as relinquishing his occupation of that land if he relinquishes his remaining estate or interest in the land;

(c) as relinquishing his occupation of, or of part of, an uncommercial unit of agricultural land if the land was, or was part of, such a unit immediately before he first granted or agreed to grant such a licence or tenancy as aforesaid;

and, in relation to any provision made by virtue of this subsection, subsections (2), (4) and (5A) of this section shall not apply but provision may be made in the scheme for corresponding purposes.”

(4) In section 28(1) for paragraph (a) there shall be substituted—

“(a) the costs of the amalgamation or boundary adjustment consisting of surveyor’s fees and legal costs, stamp duty on any conveyance, lease, tenancy agreement or mortgage or heritable security and any compensation for disturbance under section 34 of the Agricultural Holdings Act 1948 or section 35 of the Agricultural Holdings (Scotland) Act 1949, or

1948 c. 63.

1949 c. 75.

(aa) expenditure incurred in the carrying out or provision of works or facilities which the appropriate Minister considers to be necessary or desirable as a consequence of the amalgamation, or to be necessary as a consequence of the boundary adjustment, or ”;

and for the words “ or expenditure under both paragraphs (a) and (b) above ” there shall be substituted the words “ or expenditure under all or any two of paragraphs (a), (aa) and (b) above ”.

(5) In section 39 (application to Northern Ireland) after subsection (5) there shall be inserted—

“ (5A) Sections 26(1)(bb) and 27(5B) of this Act shall, in their application to Northern Ireland, have effect as if references to a tenant as defined in the Acts there mentioned were references to a tenant who holds under a contract of tenancy for a life or lives or for a term of years.”

(6) In section 40(3) (uncommercial unit not to include dwelling house) after the words “ exclusive of any one dwelling house of the unit ” there shall be inserted the words “ or of an area sufficient to provide a site for one dwelling house ”.

(7) In section 50 of the Agriculture Act 1970 (which among other things precludes the making of certain grants to small-holdings authorities under schemes made under section 26 of the said Act of 1967 unless an application for the grant has been made within five years from the date when the scheme comes into operation) for the words “ within five years from the date when the scheme comes into operation ” there shall be substituted the words “ before the end of 1975 ”.

(8) Any scheme made by virtue of section 26 of the said Act of 1967 as that section had effect before the passing of this Act shall (without prejudice to its variation or revocation by a subsequent scheme) continue to have effect as if this Act had not been passed.

(9) Sections 26(1) to (6) and 28(1) of the said Act of 1967 as amended by this section are set out in Schedule 4 to this Act.

10.—(1) Subsections (7) and (8) of section 26 of the Agriculture Act 1967 (which apply the conditions in Schedule 3 to that Act to agricultural units where certain grants have been paid) shall not apply in relation to the payment of—

(a) any grant under a scheme made under that section or section 27 of that Act after the passing of this Act ;

(b) any grant under section 29 of the Agriculture Act 1970 in respect of any work or facility certified under the said section 26 in connection with an amalgamation or boundary adjustment approved under any scheme

Conditions applicable to land where amalgamation or boundary adjustment has been assisted by a grant or loan.
1967 c. 22.

made under the said section 26 after the passing of this Act.

(2) Where, by reason of the payment of a grant under a scheme made under the said section 27 before the passing of this Act, any land became subject to the provisions of the said Schedule 3, that land shall cease to be subject to those provisions if, by virtue of transitional provisions in a scheme made under that section after the passing of this Act, the approval in consequence of which the grant was paid falls to be treated as if given under the latter scheme.

(3) Subsections (6) and (7) of section 28 of the said Act of 1967 (which apply the conditions in the said Schedule 3 to agricultural units where loans or guarantees have been made or given under that section) shall not apply in relation to any loan or guarantee in connection with an amalgamation or boundary adjustment approved under a scheme made under the said section 26 after the passing of this Act or treated by virtue of transitional provisions in such a scheme as approved thereunder.

(4) In making a grant under the said section 26 the appropriate Minister may impose such conditions as he thinks fit; and any such conditions, and any conditions imposed under section 28(5) of the said Act of 1967 or section 29(3) of the said Act of 1970, may require the recipient of the grant or loan, or the person whose indebtedness is guaranteed, to make such payments or repayments to the appropriate Minister in such circumstances as may be specified in the conditions.

(5) Paragraph 1 of the said Schedule 3 (duration of conditions imposed by that Schedule) shall have effect, and be deemed always to have had effect, with the substitution for the words "fifteen years" of the words "five years".

Grants
for farm
improvements.
1967 c. 22.

11. In subsection (9) of section 30 of the Agriculture Act 1967 (which limits the grants referred to in that subsection to one hundred and seventy million pounds) for the words "one hundred and seventy million pounds" there shall be substituted the words "one hundred and eighty million pounds".

Payments into
and out of
Agricultural
Marketing
Funds, and
abolition of
Marketing
Facilities
Committees.
1958 c. 47.

12.—(1) If the Minister considers that the sums standing to the credit of the Agricultural Marketing Fund should be reduced, he may pay such sums as he thinks fit out of that Fund into the Consolidated Fund; and if the Secretary of State considers that the sums standing to the credit of the Agricultural Marketing (Scotland) Fund should be reduced, he may pay such sums as he thinks fit out of that Fund into the Consolidated Fund:

Provided that nothing in this subsection shall be construed as conferring authority on the Minister or Secretary of State to wind up the Agricultural Marketing Fund or, as the case may be the Agricultural Marketing (Scotland) Fund.

(2) The limits imposed by subsection (3) of section 22 of the Agricultural Marketing Act 1958 on the sums which may be paid out of money provided by Parliament into the Marketing Funds mentioned in the preceding subsection are hereby abolished; and accordingly for paragraphs (a) and (b) of the said subsection (3) (which provide that the sums payable out of money so provided into each of those funds shall not in the aggregate exceed the difference between £500,000 in the case of the English fund and £125,000 in the case of the Scottish fund and the sums paid into the fund in question under section 11(2) of the Agricultural Marketing Act 1931) there shall be substituted the words "into the English fund and the Scottish fund respectively such sums".

(3) Section 23 of the Agricultural Marketing Act 1958 (which provides for the appointment of Agricultural Marketing Facilities Committees for England and Wales, for Scotland and for Great Britain) shall cease to have effect; and accordingly—

(a) the committees mentioned in that section are hereby abolished;

(b) in section 24(4) of that Act for the words from "renewal is recommended" to "they are" there shall be substituted the words "Minister is" and in section 53(5) of that Act after the words "consumers' committees" there shall be inserted the word "and"; and

(c) the following provisions of that Act shall be omitted, that is to say—

(i) in section 24(1) and 25 the words "on the recommendation of the appropriate Agricultural Marketing Facilities Committee" and in section 24(1) the proviso,

(ii) in section 53(5) the words from "and Agricultural" to "for Scotland",

(iii) in Schedule 3, paragraph 4 of Part II, paragraph 5 of Part V and paragraph 5 of Part VI.

13. The amount of the advances which the Minister may make to the Agricultural Mortgage Corporation Limited under section 2 of the Agricultural Mortgage Corporation Act 1956 for the purpose of increasing its guarantee fund shall be increased by five million pounds; and accordingly in subsection (1) of that section, as amended by section 63(1) of the Agriculture Act 1967, for the words "twelve million pounds" there shall be substituted the words "seventeen million pounds".

14. In section 4(2) of the Agriculture (Poisonous Substances) Act 1952 and section 14(1) of the Agriculture (Safety, Health and Welfare Provisions) Act 1956 (which provide that a person guilty of an offence under either of those Acts shall be liable

on summary conviction to a fine not exceeding fifty pounds) for the word "fifty" there shall be substituted the words "two hundred"; but nothing in this section affects the amount of the fine which may be imposed in respect of an offence committed before the passing of this Act.

Arbitrations
under the
Agricultural
Holdings
Act 1948.
1948 c. 63.

15.—(1) In paragraph 25(2) of Schedule 6 to the Agricultural Holdings Act 1948 (power of county court to set aside award of arbitrator under that Act if he has misconducted himself or the arbitration or award has been improperly procured) after the words "improperly procured" there shall be inserted the words "or there is an error of law on the face of the award"; but nothing in this subsection affects any proceedings begun in the High Court before the passing of this Act.

(2) It is hereby declared that regulations made by virtue of section 6 of the Agricultural Holdings Act 1948 (which authorises the Minister to prescribe terms as to the maintenance, repair and insurance of fixed equipment which, except as mentioned in that section, shall be deemed to be incorporated in every contract of tenancy of an agricultural holding) may make provision for any matter arising under such regulations to be determined by arbitration under that Act.

Levies on
processers of
and dealers in
home-grown
cereals.
1965 c. 14.

16.—(1) In subsection (1) of section 16 of the Cereals Marketing Act 1965 (which enables the Home-Grown Cereals Authority to prepare schemes for imposing levies on growers of home-grown cereals) for the words from "for imposing" onwards there shall be substituted the words "for imposing a levy on persons or classes of persons specified in the scheme who are growers or processers of or dealers in home-grown cereals of a kind specified in the scheme"; and accordingly in subsection (6) of that section for the words "growers of home-grown cereals" there shall be substituted the words "the persons or classes of persons specified in the scheme as liable to a levy on home-grown cereals".

(2) In subsection (4) of section 16 of that Act (which makes provision for the Ministers by order to approve, modify or revoke a scheme) after the words "Ministers by order" there shall be inserted the words "after consultation with such persons or organisations as appear to the Ministers to represent the interests concerned".

(3) In section 24(5) of that Act (which among other things provides that any reference in that Act to a person who processes home-grown cereals is a reference to a person who applies an industrial process to home-grown cereals in the course of a business carried on by him) before the words "in the course of" there shall be inserted the words "with a view to selling the processed cereals".

17.—(1) Section 1 of the Corn Sales Act 1921 (which provides that any contract or other dealing relating to corn shall be void unless it is made by reference to the weight of the corn in hundredweights) shall cease to have effect.

Abolition of requirements that dealings and returns relating to corn must be in hundred-weights.
1921 c. 35.
1882 c. 37.

(2) The Minister may as respects England and Wales, and the Secretary of State may as respects Scotland, provide by order made by statutory instrument that sections 8 and 9(6) of the Corn Returns Act 1882 (which respectively require that computations of corn in returns under that Act shall be in hundredweights and that the annual and septennial average price published in pursuance of that Act shall be for a hundredweight of corn) shall have effect as if for any reference to the hundredweight of one hundred and twelve imperial standard pounds there were substituted a reference to another weight prescribed by the order; and an order under this subsection may—

- (a) make such modifications of section 9(4) and (5) of that Act as the authority making the order considers are appropriate in consequence of any other provision made by the order or by another order under this subsection;
- (b) be varied or revoked by a subsequent order under this subsection.

18. Section 78(1) of the Agriculture Act 1947 shall have effect with the following amendments (which replace provisions authorising the making, after consultation with the relevant advisory committee established in pursuance of section 77 of that Act, of regulations with respect to the service of notices requiring the furnishing of information relating to agriculture by provisions authorising the service of such notices) that is to say—

Power to obtain agricultural statistics by means of notices.
1947 c. 48.

- (a) for the words from “after consultation” to “of notices requiring them” there shall be substituted the words “serve on any owners or occupiers of land used for agriculture, or of land which the Minister has reason to believe may be so used, notices requiring them”; and
- (b) for the word “prescribed” where it first occurs there shall be substituted the words “specified in the notice” and for the words “prescribed information” in both places where they occur there shall be substituted the words “information referred to in the notice”; and
- (c) the words from “and regulations” to “be prescribed” shall be omitted;

and accordingly section 77 of that Act shall cease to have effect and the committees mentioned in that section are hereby abolished.

Use of
poison
against grey
squirrels and
coypus.

19.—(1) The relevant Minister may, by an order made for the purposes of this section and applying either to the whole of Great Britain or to any specified part or area thereof, specify a poison for use for the purpose of destroying grey squirrels or coypus and the manner of its use for that purpose; and it shall be a defence in proceedings for an offence against any of the enactments mentioned in subsection (2) of this section to show that—

- (a) the act alleged to constitute the offence was done for the purpose of destroying grey squirrels or coypus and was done at a time when, and in a place where, such an order had effect; and
- (b) the poison used and the manner of its use were such as to comply with the provisions of the order.

1911 c. 27.

1912 c. 14.

1954 c. 30.

(2) The said enactments are section 8(b) of the Protection of Animals Act 1911, section 7(b) of the Protection of Animals (Scotland) Act 1912 (which restrict the placing on land of poison and poisoned substances) and so much of section 5(1)(a) of the Protection of Birds Act 1954 as relates to poisoned or poisonous substances.

(3) The relevant Minister shall not make an order for the purposes of this section except after such consultation as he considers appropriate with such organisations as appear to him to represent the interests concerned and unless a draft of the order has been laid before, and approved by a resolution of, each House of Parliament.

(4) Any order made for the purposes of this section may make different provision in relation to grey squirrels and in relation to coypus; and the power to make orders for the purposes of this section shall be exercisable by statutory instrument and shall include power to vary or revoke a previous order.

(5) In this section “the relevant Minister” means—

- (a) in the case of an order which does not apply outside England, the Minister;
- (b) in the case of an order which does not apply outside Scotland, the Secretary of State for Scotland;
- (c) in the case of an order which applies both in England and in Scotland but not in Wales, the Minister and the Secretary of State for Scotland acting jointly;
- (d) in the case of an order which applies in Wales or both in England and Wales but not (in either case) in Scotland, the Minister and the Secretary of State for Wales acting jointly; and

(e) in the case of an order which applies in England, Scotland and Wales, the Minister and those Secretaries of State acting jointly.

For the purposes of this subsection Monmouthshire shall be treated as part of Wales and not of England.

(6) This section is without prejudice to any defence available apart from this section in proceedings for any such offence as is mentioned in subsection (1) of this section; and nothing in this section shall be construed as conferring any exemption from any provision contained in or having effect under any enactment not mentioned in subsection (2) of this section.

20. It is hereby declared that an order made or having effect under the Plant Health Act 1967 may contain provisions for requiring a person to pay to a competent authority or local authority for the purposes of that Act the cost to the authority of doing anything which that person has, in breach of a requirement imposed on him by or under the order, failed to do.

Recovery of expenses incurred by authority exercising default powers under orders made by virtue of Plant Health Act 1967. 1967 c. 8.

21.—(1) Sections 71 and 72 of the Agriculture Act 1947 (which respectively provide for the establishment of County Agricultural Executive Committees, sub-committees of the Committees and district committees and authorise the delegation to Executive Committees of the Minister's functions relating to agriculture) shall cease to have effect; and accordingly the Executive Committees and other committees mentioned in section 71 of that Act are hereby abolished.

Abolition of agricultural executive committees etc. 1947 c. 48.

(2) Sections 68 and 69 of the Agriculture (Scotland) Act 1948 (which respectively provide for the establishment of Agricultural Executive Committees and sub-committees and authorise the delegation to Executive Committees of the functions of the Secretary of State relating to agriculture) shall cease to have effect; and accordingly the Executive Committees and sub-committees mentioned in section 68 of that Act are hereby abolished.

1948 c. 45.

(3) Subsection (2) of section 11 of the Agriculture (Miscellaneous Provisions) Act 1941 (which requires the Minister and the Secretary of State acting jointly to appoint and consult an advisory committee in connection with the prevention of the spread of pests and disease among bees) shall cease to have effect; and accordingly the committee mentioned in that subsection is hereby abolished.

1941 c. 50.

Abolition of
agricultural
wages
committees
in Scotland.
1949 c. 30.

22. The agricultural wages committees constituted under section 2 of the Agricultural Wages (Scotland) Act 1949 are hereby abolished, and the provisions of Schedule 5 to this Act shall have effect for that purpose and for the purpose of transferring to the Secretary of State certain of the functions of the said committees.

Powers of
Secretary
of State in
relation to
certain parks,
gardens etc.
in Scotland.

23.—(1) Subject to the provisions of subsection (3) of this section, the Parks Regulation Acts 1872 and 1926 shall apply to all parks, gardens, recreation grounds, open spaces and other land for the time being vested in, or under the control or management of, the Secretary of State for Scotland in the same manner as to land vested in him to which they applied before the commencement of this Act.

(2) As respects land to which the said Parks Regulation Acts are extended by subsection (1) of this section, the Secretary of State shall have the following powers—

- (a) the power to carry out or commission the carrying out of scientific inquiries, experiments and research on and in connection with the land, either on his own account or jointly with other persons ;
- (b) the power to manage, maintain and improve the land and to erect and maintain buildings and other structures on the land for the purpose of providing office or other accommodation in connection with the exercise of any of his powers relating to the land ;
- (c) the power to make such charges as he thinks fit for admission to the land and in connection with any of the activities mentioned in paragraph (a) of this subsection.

1967 c. 10.
1967 c. 86.

(3) This section shall not apply to land in respect of which byelaws may be made under section 46 of the Forestry Act 1967 or under section 60 of the Countryside (Scotland) Act 1967.

Recovery of
possession of
redundant
farmhouses.
1968 c. 23.
1971 c. 28.

24. Paragraph (f) of Case 14 in Schedule 3 to the Rent Act 1968 and paragraph (f) of Case 15 in Schedule 3 to the Rent (Scotland) Act 1971 (under which the right conferred by those Cases to recover possession of a dwelling-house is available only if proceedings are commenced within the appropriate time limit specified in those paragraphs) shall cease to have effect except where the relevant date for the purposes of the said Case 14 or, as the case may be, Case 15 was before the passing of this Act.

Expenses
and receipts.

25. There shall be defrayed out of moneys provided by Parliament—

- (a) any expenses incurred by any Minister under this Act ;

(b) any increase attributable to this Act in the sums payable out of moneys so provided under any other Act ; and any sums received by any Minister by virtue of this Act shall be paid into the Consolidated Fund.

26.—(1) Except where the context otherwise requires, in this Act “ the Minister ” means the Minister of Agriculture, Fisheries and Food. Interpretation and repeals.

(2) Except where the context otherwise requires, any reference in this Act to any enactment is a reference to it as amended, and includes a reference to it as applied, by or under any other enactment, including this Act.

(3) Subject to subsection (4) of this section, the enactments mentioned in Schedule 6 to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(4) The repeals in section 26 of the Agriculture Act 1967 1967 c. 22. and in sections 32, 33 and 50 of the Agriculture Act 1970 shall 1970 c. 40. not have effect in relation to any scheme made under section 26 of the said Act of 1967 before the passing of this Act.

27.—(1) This Act may be cited as the Agriculture Short title, commencement and extent.
(Miscellaneous Provisions) Act 1972.

(2) The following provisions of this Act, that is to say—

(a) paragraphs (a), (c), (d) and (e) of subsection (1), and subsections (2) and (3), of section 5, section 6, and Schedule 1 ;

(b) Schedule 6 so far as it relates to the Slaughterhouses 1954 c. 42. Act 1954, to sections 65, 70(1) and 75 to 78 of the Food 1955 c. 16 and Drugs Act 1955, to the Slaughterhouses Act 1958 (4 & 5 Eliz. 2). and to section 54(2) of the London Government Act 1958 c. 70. 1963, 1963 c. 33.

shall not come into force until 1st January 1974.

(3) Section 18 of this Act, and Schedule 6 to this Act so far as it relates to sections 77 and 78 of the Agriculture Act 1947 c. 48. 1947, shall not come into force until such day as may be appointed by an order made by statutory instrument by the Minister and the Secretary of State acting jointly.

(4) Sections 5, 13 and 15 of this Act do not extend to Scotland, and sections 6, 7, 22 and 23 of, and Schedules 1, 2 and 5 to, this Act extend to Scotland only.

(5) Except for the following provisions, that is to say—

(a) sections 9, 10, 11, 16, 17(1), 26(1) and (2) and this section and Schedule 4 ; and

- 1921 c. 35.
1957 c. 20.
1967 c. 22.
1970 c. 40.
- (b) section 26(3) and (4) and Schedule 6 so far as they relate to the Corn Sales Act 1921, to the House of Commons Disqualification Act 1957, to section 26 of the Agriculture Act 1967 and to sections 32, 33 and 50 of the Agriculture Act 1970,

this Act does not extend to Northern Ireland.

SCHEDULES

SCHEDULE 1

Section 6.

MINOR AND CONSEQUENTIAL AMENDMENTS OF PART II OF
SLAUGHTERHOUSES ACT 1954 (PROVISIONS RELATING TO SCOTLAND) 1954 c. 42.

In section 8 (provisions relating to local authority slaughterhouses), subsection (1) shall cease to have effect.

In section 10 (refusal and cancellation of registration), in subsection (3)(b) after the words "are not" (where they first occur) there shall be inserted the words ", and are not likely within a reasonable time to be", the words from "that any" to "specified" (where it last occurs) shall cease to have effect, and for the words "such premises" there shall be substituted the words "the premises specified in the registration"; in subsection (8) for the words "Secretary of State and any such appeal" there shall be substituted the words "sheriff, and any such appeal shall be disposed of in a summary manner, and"; and the following provisions shall also cease to have effect:—

subsections (1) and (2);

in subsection (3), paragraphs (a) and (c);

subsection (5);

in subsection (6) the words "to the Secretary of State".

Section 11 (compensation for closure of private slaughterhouses) shall cease to have effect.

In section 13 (power to enter premises), after subsection (5) there shall be inserted the following subsection:—

"(6) Nothing in this section shall authorise any person, except with the permission of the local authority under the Diseases of Animals Act 1950, to enter any premises which for the time being are, or are comprised in, an infected place within the meaning of that Act." 1950 c. 36.

In section 18 (savings), subsections (2) and (3) shall cease to have effect.

In section 19 (expenses) paragraph (b) shall cease to have effect.

SCHEDULE 2

Section 7

MINOR AND CONSEQUENTIAL AMENDMENTS OF SLAUGHTER
OF ANIMALS (SCOTLAND) ACTS 1928 TO 1954

The Slaughter of Animals (Scotland) Act 1928

1928 c. 29.

In section 2 (licensing of slaughtermen), at the beginning there shall be inserted the following subsection:—

"(1A) No animal shall be slaughtered or stunned in a slaughterhouse or knacker's yard by any person except in accordance with a licence granted by a local authority and in force under this section:

Provided that this subsection shall not apply with respect to the slaughter, under the Diseases of Animals Act 1950, of an 1950 c. 36.

SCH. 2 animal by an officer of, or person employed by, the Minister of Agriculture, Fisheries and Food or the Secretary of State."

1954 c. 59. In section 4, which as amended by the Slaughter of Animals (Amendment) Act 1954, enables constables and other authorised persons to enter slaughterhouses and knackers' yards for the purposes of ascertaining whether there is a contravention of the provisions of the Act or of any regulations under section 2 of the said Act of 1954)—

(a) the reference to the provisions of the Act shall be construed as including a reference to the provisions of any regulations made by virtue of section 1(1) of the Act (as substituted by section 7 of this Act); and

(b) at the end there shall be inserted the following subsection:—

1950 c. 36. " (2) Nothing in this section shall authorise any person, except with the permission of the local authority under the Diseases of Animals Act 1950, to enter any premises which for the time being are, or are comprised in, an infected place within the meaning of that Act."

Sections 5, 6, 9 and 10 shall cease to have effect.

1953 c. 27.

The Slaughter of Animals (Pigs) Act 1953

In section 1 (which prescribes conditions for the slaughter of certain pigs elsewhere than in slaughterhouses or knackers' yards)—

(a) for the word "unless" and paragraphs (a) and (b) there shall be substituted the words "otherwise than instantaneously by means of a mechanically-operated instrument in proper repair unless by stunning, effected by means of a mechanically-operated instrument or an instrument for stunning by means of electricity, being in either case an instrument in proper repair, it is instantaneously rendered insensible to pain until death supervenes: ";

(b) for the word "pig", in both places where it occurs, there shall be substituted the word "swine".

In section 3 (interpretation), in subsection (1), the definition of "pig" shall be omitted, and subsection (2) shall cease to have effect.

The Slaughter of Animals (Amendment) Act 1954

In section 2 (regulations for securing humane conditions in slaughterhouses, etc.), in subsection (1), after the words "knackers' yards" where first occurring there shall be inserted the words "and for securing the proper management of such premises for those purposes"; and subsection (3), in subsection (5) the words from "and" onwards, and subsection (6) shall cease to have effect.

Schedule 1 shall cease to have effect.

SCHEDULE 3

Section 8

LICENSING OF BULLS

Determination of applications for licences on basis of certificates of suitability

1.—(1) Regulations under section 11 of the Improvement of Live 1931 c. 43. Stock (Licensing of Bulls) Act 1931 may require an application for a licence under that Act in respect of a bull to be accompanied by a certificate in the prescribed form containing—

- (a) the prescribed particulars as to the suitability of the bull for a licence under that Act ; and
- (b) such other particulars as may be prescribed,

being a certificate issued by a veterinary surgeon who is a member of a panel appointed for the purposes of this Schedule by the Royal College of Veterinary Surgeons and the British Veterinary Association acting jointly ; and the Minister may, if he thinks fit, decide whether or not to refuse to grant the licence on any of the grounds mentioned in section 2(2) of that Act on a consideration of the certificate and without himself causing the bull to be inspected.

(2) A veterinary surgeon who inspects a bull with a view to the issue of a certificate for the purposes of an application for a licence under the said Act of 1931 shall mark the bull with a prescribed mark in the prescribed manner.

(3) The Minister may refuse to grant a licence under the said Act of 1931 in respect of a bull—

- (a) if he is not satisfied that the bull has been marked in accordance with sub-paragraph (2) above on the occasion of its inspection by the veterinary surgeon who issued the certificate accompanying the application ; or
- (b) if it appears to him that, before that inspection, the bull had already been inspected for the purposes of an application under that Act by a different veterinary surgeon or been marked in accordance with that sub-paragraph.

(4) In this paragraph 'the Minister' and 'prescribed' have the same meaning as in the said Act of 1931 but no regulations shall be made prescribing a mark or manner of marking for the purposes of sub-paragraph (2) above except on the joint recommendation of the Royal College of Veterinary Surgeons and the British Veterinary Association.

Appeal referees

2. In section 5(2) of the said Act of 1931 (which provides for a panel of referees appointed on the recommendation of agricultural associations and cattle-breeding societies) for the words 'and cattle-breeding societies' there shall be substituted the words 'cattle-breeding societies and associations of veterinary surgeons'.

Power to suspend operation of Act

3.—(1) The relevant Minister may by order suspend the operation of the said Act of 1931 from such date as may be specified in the order until such later date as may be specified in that order or in a further order under this paragraph ; and

(a) if the Act is so suspended—

(i) any licence, permit, notice or regulations in force, or application pending, under that Act on the date of suspension shall lapse ;

(ii) the suspension shall not affect the taking or continuance of proceedings in respect of any offence committed, or liability for costs under section 6 of that Act incurred, before that date ;

(b) if the suspension comes to an end the Act shall operate as if references in it to 'the appointed day' were references to such day after the ending of the suspension as the relevant Minister may by order appoint and as if the definition of that expression in section 13 of that Act were omitted.

(2) Any order under this paragraph shall be made by statutory instrument ; and any such order made otherwise than under subparagraph (1)(b) may be varied or revoked by a subsequent order and shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(3) In this paragraph 'the relevant Minister' means—

(a) in the case of an order applying only to England and Wales, the Minister ;

(b) in the case of an order applying only to Scotland, the Secretary of State ;

(c) in the case of an order applying to England, Wales and Scotland, the Minister and the Secretary of State acting jointly.

Section 9.

SCHEDULE 4

1967 c. 22.

SECTIONS 26(1) TO (6) AND 28(1) OF AGRICULTURE ACT 1967 AS AMENDED

1970 c. 40.

26.—(1) The appropriate Minister may in accordance with a scheme and subject to section 50 of the Agriculture Act 1970 make, out of money provided by Parliament, grants of amounts determined in such manner as may be provided by or under the scheme in connection with the carrying out of any of the following transactions approved by him in pursuance of the scheme, that is to say—

(a) transactions for securing that agricultural land which is or forms part of an uncommercial unit, but which together with some other agricultural land could form an intermediate unit or commercial unit, shall be owned and occupied with that other land, and

(b) transactions for securing that, where an intermediate unit or a commercial unit is not all in the same ownership, any part of it comes to be in the same ownership as the rest of that unit, or in the same ownership as some other part of that unit, but excluding transactions which bring into the same ownership and occupation two or more parts of the unit each of which could by itself form a commercial unit, and

(bb) transactions for securing that, where the person occupying SCH. 4 an intermediate unit or a commercial unit occupies any part or parts of it otherwise than as owner or as a tenant as defined in the Agricultural Holdings Act 1948 (or, in 1948 c. 63. Scotland, the Agricultural Holdings (Scotland) Act 1949), 1949 c. 75. he comes to occupy that part or all those parts as owner or as such a tenant, and

(c) transfers or exchanges of agricultural land (or estates or interests in agricultural land) for the purpose of giving more satisfactory boundaries to one or more agricultural units ;

and for the purposes of paragraph (a) above, such assumptions as the appropriate Minister may consider reasonable may be made as to the works and facilities which will be carried out or provided for the benefit of the unit to be formed.

Transactions within paragraphs (a), (b) and (bb) above are in this Part of this Act referred to as "amalgamations", and transactions within paragraph (c) are in this Part of this Act referred to as "boundary adjustments".

(2) A scheme under this section may restrict the amalgamations and boundary adjustments to which it applies in any way, and may in particular exclude amalgamations of land which has reverted from being in single ownership or occupation or, as respects transactions within subsection (1)(bb) of this section, cases where after the transaction has been effected the unit is not in single ownership.

(4) A scheme under this section may make different provision for different circumstances.

(6) Any approval in pursuance of a scheme under this section of an amalgamation or boundary adjustment—

(a) may be given either before or, in any case where the appropriate Minister thinks fit, after the amalgamation or boundary adjustment has been carried out ;

(b) may be given subject to such conditions as the appropriate Minister may specify, and in particular subject to any condition as to the time within which the amalgamation or boundary adjustment is to be carried out or as to the carrying out or provision within a specified period of specified works or facilities appearing to the appropriate Minister to be necessary as a consequence of the amalgamation or boundary adjustment ;

(c) may be varied or withdrawn by the appropriate Minister with the written consent of the person on whose application the approval was given ;

and the appropriate Minister may, if he thinks fit, for the purposes of a claim for grant under section 29 of the Agriculture Act 1970 1970 c. 40. issue a certificate with respect to any work or facility that he considers it to be necessary or desirable as a consequence of an amalgamation, or to be necessary as a consequence of a boundary adjustment, approved by that Minister in pursuance of the scheme.

SCH. 4

28.—(1) The appropriate Minister may with the approval of the Treasury make or guarantee loans to meet expenditure incurred in connection with an amalgamation or boundary adjustment approved by the appropriate Minister in pursuance of a scheme under section 26 of this Act, being—

1948 c. 63.
1949 c. 75.

- (a) the costs of the amalgamation or boundary adjustment consisting of surveyor's fees and legal costs, stamp duty on any conveyance, lease, tenancy agreement or mortgage or heritable security and any compensation for disturbance under section 34 of the Agricultural Holdings Act 1948 or section 35 of the Agricultural Holdings (Scotland) Act 1949, or
- (aa) expenditure incurred in the carrying out or provision of works or facilities which the appropriate Minister considers to be necessary or desirable as a consequence of the amalgamation, or to be necessary as a consequence of the boundary adjustment, or
- (b) any part of the purchase price of any land acquired as part of the amalgamation or as the case may be any part of the purchase price of land acquired, or of money given by way of equality of exchange, as part of the boundary adjustment,

or expenditure under all or any two of paragraphs (a), (aa) and (b) above.

Section 22.**SCHEDULE 5**

**AMENDMENTS RELATING TO ABOLITION OF AGRICULTURAL WAGES
COMMITTEES IN SCOTLAND**

1949 c. 30.

The Agricultural Wages (Scotland) Act 1949

In section 1, in subsection (1), the words from "in relation" to "section" shall cease to have effect.

In section 1, subsection (2) shall cease to have effect.

Section 2 shall cease to have effect.

In section 3, in subsection (1), the words from "for each" to "Act" shall cease to have effect.

In section 5, in subsection (1), for the words "an agricultural wages committee are" there shall be substituted the words "the Secretary of State is"; the words "in their district" shall cease to have effect; for the words "committee shall grant" there shall be substituted the words "Secretary of State shall grant"; and for the words "committee think" there shall be substituted the words "Secretary of State thinks".

In section 5, in subsection (3), for the words "an agricultural wages committee have granted a permit" there shall be substituted the words "a permit has been granted (whether before or after the commencement of the Agriculture (Miscellaneous Provisions) Act 1972)"; and for the words "the committee" in both places where those words occur, there shall be substituted the words "the Secretary of State".

SCH. 5

In section 5, in subsection (4), the words from "an agricultural" to "aforesaid and" shall cease to have effect; for the words "the committee", in both places where those words occur, there shall be substituted the words "the Secretary of State"; and for the words "the worker to whom the permit relates" there shall be substituted the words "a worker to whom a permit has been granted (whether before or after the commencement of the said Act of 1972) under subsection (1) of this section".

In section 5, after subsection (4) there shall be inserted the following subsections:—

"(4A) Notice of application for a permit under subsection (1) of this section, if made by an employer, shall be given by the Secretary of State to the worker to whom the application relates to enable him to make such representations as he thinks desirable."

In section 5, in subsection (5), for the words "an agricultural wages committee" and "the agricultural wages committee" there shall be substituted in both cases the words "the Secretary of State"; for the words "the committee" wherever those words occur, there shall be substituted the words "the Secretary of State"; for the word "their" there shall be substituted the word "his"; and after the words "under this" there shall be inserted the words "or the last preceding".

In section 5, in subsection (6), after the words "a worker" there shall be inserted the words "(whether before or after the commencement of the said Act of 1972)".

In section 6, subsections (1) to (4) shall cease to have effect.

In section 6, in subsection (5) the words from "in a district" to "this Act" shall cease to have effect, and for the words "agricultural wages committee" there shall be substituted the words "Secretary of State".

In section 6, subsection (8) shall cease to have effect.

In section 7, in subsection (1), the words from "for each district" to "established under this Act" shall cease to have effect.

In section 7, in subsection (3), for the words "an agricultural wages committee are" there shall be substituted the words "the Secretary of State is"; the words "in their district" shall cease to have effect; for the words "the committee" there shall be substituted the words "the Secretary of State"; and the words from "subject" to "Act" where it first occurs shall cease to have effect.

Section 8 shall cease to have effect.

In section 9, in subsection (1), for the words from "and complaints" to "thereof" there shall be substituted the words "to the Secretary of State under section 5 or section 7 of this Act".

In section 9, subsection (2) shall cease to have effect.

In section 12, in subsection (4)(a), the words from "or" to "work" shall cease to have effect.

In section 13, the words "and of agricultural wages committees" and "and each committee" shall cease to have effect.

In section 14, the words from "or" to "thereof" shall cease to have effect.

SCH. 5

In section 15, the words "or an agricultural wages committee" and "or committee, as the case may be," shall cease to have effect.

The second Schedule shall cease to have effect.

In the third Schedule, in paragraph 1, sub-paragraph (b) shall cease to have effect.

In the third Schedule, in paragraph 4, the words from "and serve" to the end of the paragraph shall cease to have effect.

In the third Schedule, in paragraph 5, for the words from "in the district" to "such a special area" there shall be substituted the words "or to any class of workers (as defined in the order) or to any area or to any such class in any area".

1968 c. 34.

The Agriculture (Miscellaneous Provisions) Act 1968

In section 46, subsection (3) shall cease to have effect.

Section 26(3)
and (4).

SCHEDULE 6

REPEALS

Chapter	Short title	Extent of repeal
11 & 12 Geo. 5. c. 35.	The Corn Sales Act 1921.	Section 1.
18 & 19 Geo. 5. c. 29.	The Slaughter of Animals (Scotland) Act 1928.	Sections 5, 6, 9 and 10.
4 & 5 Geo. 6. c. 50.	The Agriculture (Miscellaneous Provisions) Act 1941.	Section 11(2) and (7).
6 & 7 Geo. 6. c. 16.	The Agriculture (Miscellaneous Provisions) Act 1943.	In section 17, subsection (4) and, in subsection (6), the words "or subsection (4)".
7 & 8 Geo. 6. c. 28.	The Agriculture (Miscellaneous Provisions) Act 1944.	In section 6, subsections (1) to (3) and in subsection (4) the words "by virtue of the last foregoing subsection, or" and the words "or boar" in both places where they occur.
9 & 10 Geo. 6. c. 26.	The Emergency Laws (Transitional Provisions) Act 1946.	In Schedule 2, in the paragraph dealing with the amendments of the Improvement of Live Stock (Licensing of Bulls) Act 1931, the words "in its application to England and Wales".
9 & 10 Geo. 6. c. 73.	The Hill Farming Act 1946.	In section 3(6), all the words after "appropriate Minister" and before "for the doing", and the words "or committee". Section 33. In section 34, in subsection (1) all the words after "given by him" and before "shall, on producing", and in subsection (2) all the words after "authorised as aforesaid" and before "in the exercise".

SCH. 6

Chapter	Short title	Extent of repeal
10 & 11 Geo. 6. c. 48.	The Agriculture Act 1947.	Sections 71 and 72. In section 75 the words "partly in the area of one County Agricultural Executive Committee and partly in the area of another, or" and the words "committee or". Section 77. In section 78(1), the words from "and regulations" to "be prescribed". Section 104(5). In Schedule 9, paragraphs 7 to 12 and 21 and in paragraph 22(2) the words from "County" to "district committees and" and the words "committees and" in the second place where they occur.
10 & 11 Geo. 6. c. 53.	The Town and Country Planning (Scotland) Act 1947.	Schedule 10. In section 8(2)(a), the words from "and" onwards.
11 & 12 Geo. 6 c. 45.	Agriculture (Scotland) Act 1948.	Sections 68 and 69. Section 80(5). In Schedule 8, Part I with the exception of paragraph 11.
12 & 13 Geo. 6. c. 30.	The Agricultural Wages (Scotland) Act 1949.	In section 1, in subsection (1), the words from "in relation" to "section", and subsection (2). Section 2. In section 3, in subsection (1), the words from "for each" to "Act". In section 5, in subsection (1), the words "in their district", and in subsection (4), the words from "agricultural" to "aforesaid and". In section 6, subsections (1) to (4), in subsection (5), the words from "in a district" to "this Act", and subsection (8). In section 7, in subsection (1), the words from "for each district" to "established under this Act", and in subsection (3), the words "in their district", and the words from "subject" to "Act" where it first occurs. Section 8. Section 9(2). In section 12(4)(a), the words from "or" to "work".

SCH. 6

Chapter	Short title	Extent of repeal
12 & 13 Geo. 6. c. 30— <i>cont.</i>	The Agricultural Wages (Scotland) Act 1949— <i>cont.</i>	In section 13, the words “and of agricultural wages committees” and “and each committee”. In section 14, the words from “or” to “thereof”. In section 15, the words “or an agricultural wages committee” and “or committee, as the case may be,”. Schedule 2. In Schedule 3, paragraph 1(b), and in paragraph 4, the words from “and serve” onwards.
12 & 13 Geo. 6. c. 52.	The Slaughter of Animals (Scotland) Act 1949.	The whole Act.
12 & 13 Geo. 6. c. 55.	The Prevention of Damage by Pests Act 1949.	In section 4, subsections (3) and (6)(a).
14 & 15 Geo. 6. c. 18.	The Livestock Rearing Act 1951.	Sections 9 and 10.
1 & 2 Eliz. 2. c. 27.	The Slaughter of Animals (Pigs) Act 1953.	In section 3, in subsection (1), the definition of “pig”, and subsection (2).
2 & 3 Eliz. 2. c. 30.	The Protection of Birds Act 1954.	In section 10(4) the words from “and those powers” onwards.
2 & 3 Eliz. 2. c. 42.	The Slaughterhouses Act 1954.	Section 8(1). In section 10, subsections (1) and (2); in subsection (3), paragraphs (a) and (c) and in paragraph (b) the words from “that any” to “specified” where last occurring and the word “or” at the end of the paragraph; subsection (5); and in subsection (6), the words “to the Secretary of State”. Section 11. In section 18, subsections (2) and (3). Section 19(b).
2 & 3 Eliz. 2. c. 59.	The Slaughter of Animals (Amendment) Act 1954.	In section 2, subsection (3); in subsection (5), the words from “and” onwards; and subsection (6). Schedule 1.
4 Eliz. 2. c. 16.	The Food and Drugs Act 1955.	Section 65 so far as it relates to slaughterhouses. Section 70(1). In section 73, in subsection (2) the words from “and a copy” onwards, and subsection (3). Sections 75 to 78.

Chapter	Short title	Extent of repeal
5 & 6 Eliz. 2. c. 20.	The House of Commons Disqualification Act 1957.	In Part IV of Schedule 1, the entries relating to the Agriculture Act 1947 and the Agriculture (Scotland) Act 1948.
6 & 7 Eliz. 2. c. 47.	The Agricultural Marketing Act 1958.	In section 22(6) the words from "and there may" to "sum so written off." Section 23. In sections 24(1) and 25 the words "on the recommendation of the appropriate Agricultural Marketing Facilities Committee" and in section 24(1), the proviso. In section 53(5) the words from "and Agricultural" to "for Scotland". In Schedule 3, paragraph 4 of Part II, paragraph 5 of Part V and paragraph 5 of Part VI.
6 & 7 Eliz. 2. c. 70.	The Slaughterhouses Act 1958.	In section 1, subsections (1), (3) and (4). Sections 2 to 4. In section 6, subsection (1), in subsection (2) the words "the foregoing subsection or under" and in subsection (3) paragraphs (a) to (f). In section 11 the words "this Act and" where they first occur and the words "to this Act and". Section 12(2). In section 13(2) the words "or in the First Schedule to". Schedule 1.
1963 c. 11.	The Agriculture (Miscellaneous Provisions) Act 1963.	In section 16(4), the words from "and, by virtue" to "boars". Section 17.
1963 c. 33.	The London Government Act 1963.	Section 54(2). Section 55(3).
1967 c. 22.	The Agriculture Act 1967.	In section 26, subsections (3) and (5), and in subsection (6)(a) the words "the expenditure has been incurred or". Section 63(1).
1968 c. 23.	The Rent Act 1968.	In Schedule 3, paragraph (f) of Case 14 except where the relevant date for the purposes of that Case was before the passing of this Act.
1968 c. 34.	The Agriculture (Miscellaneous Provisions) Act 1968.	Section 46(3).

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Chapter	Short title	Extent of repeal
1970 c. 40.	The Agriculture Act 1970.	Section 32(4)(b). Section 33(4). In section 50 the words "in respect of expenditure incurred" in both places where they occur. In Schedule 4 the entry relating to the London Government Act 1963.
1971 c. 28.	The Rent (Scotland) Act 1971.	In Schedule 3, paragraph (f) of Case 15 except where the relevant date for the purposes of that Case was before the passing of this Act.
1971 c. lxxvii.	The Manchester Corporation (General Powers) Act 1971.	In section 65, in subsection (3) the words "public abattoir", in subsection (4) the words "the abattoir or of", and subsection (6).